# REGISTERED A.D. / EMAIL — LEGAL DEMAND NOTICE

**WITHOUT PREJUDICE**

**Strategy Posture:** grounded-statute-engine-v1 (Balanced Legal Strategy)

**Date:** 11 November 2026

**From:** Aarav Verma (Test Claimant), residing at Flat 402, Indiranagar, Bengaluru - 560038

**To:** Opposite Party / Respondent, having address at Registered Address of Opposite Party

**SUBJECT: FINAL PRE-LITIGATION LEGAL NOTICE FOR RECOVERY OF Rs. 150,000 AND STATUTORY COMPLIANCE (RENTAL SECURITY DEPOSIT RECOVERY & UNLAWFUL LANDLORD DEDUCTIONS)**

Sir / Madam,

Under instructions from and on behalf of my self-represented claim, I hereby serve upon you the following categorical Legal Demand Notice:

## 1. CHRONOLOGICAL STATEMENT OF FACTS

1. Paid refundable security deposit of Rs. 150,000 to landlord. (*Establishes liquidated refundable debt under Indian Contract Act Sec 73 & CPC Order XXXVII.*)

2. Vacated premises and handed over keys / vacant possession to landlord. (*Triggers mandatory refund obligation under Transfer of Property Act Sec 108(q) & Model Tenancy Act Sec 11.*)

3. Landlord refusing refund or claiming arbitrary painting/wear-and-tear deductions without bills.

## 2. APPLICABLE STATUTORY PROVISIONS (VERIFIED INDIAN LAW)

Your continued failure and refusal to discharge the lawful liability of **Rs. 150,000** is in direct breach of the following statutory provisions:

- **Transfer of Property Act, 1882 (Section 108(q)):** Upon determination of the lease and handover of vacant possession by the lessee, the contractual relationship terminates and the lessor has no legal right to retain refundable security money without proven arrears.

- **Transfer of Property Act, 1882 (Section 106):** In the absence of a written contract to the contrary, a residential lease from month to month is terminable by 15 days' written notice.

- **Model Tenancy Act, 2021 (and State Tenancy Acts) (Section 11(1) & Section 11(2)):** Security deposit for residential premises is capped at two months' rent and must be refunded to the tenant on the date of taking over vacant possession, after making due deduction only for verifiable arrears.

- **Indian Contract Act, 1872 (Section 73 & Section 74):** A party claiming breach or damage can only recover reasonable compensation for actual, proven loss—not arbitrary lump-sum deductions for routine 'normal wear and tear' or unbilled repainting.

- **Code of Civil Procedure, 1908 (CPC) (Order XXXVII (Summary Suits) & Section 34):** Enables fast-track summary recovery of a liquidated debt (such as a written security deposit receipt) where the defendant landlord cannot even defend without special leave of the Court, plus pendente lite and future interest under Section 34.

## 3. FINAL DEMAND & CONSEQUENCE OF NON-COMPLIANCE

I hereby call upon you to:

1. Remit the principal sum of **Rs. 150,000** (Rupees 150,000 only) along with accrued interest @ 18% per annum immediately via NEFT/IMPS/UPI; and

2. Issue written confirmation of compliance within **7 (seven) days** from the receipt of this Notice.

Take notice that should you fail to comply within the stipulated **7 (seven) days**, I shall immediately file a formal recovery petition before **nalsa.gov.in (Pre-Institution Mediation / Lok Adalat) & State e-Courts Services** entirely at your risk as to costs, statutory interest, and damages.

A copy of this Notice is retained in my records for production before the competent Court/Authority as Annexures.

Yours faithfully,

**Aarav Verma (Test Claimant)**

*(Claimant)*